



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

September 4, 2012

Memorandum for: Deputy Commissioner, Trials

Re: **Detective Thomas Garcia**
Tax Registry No. 903998
Military and Extended Leave Desk
Disciplinary Case No. 84798/08

CHAN

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on September 26, 2011 and was charged with the following:

DISCIPLINARY CASE NO. 84798/08

1. Said Detective Thomas Garcia, while off duty and assigned to the 24th Precinct Detective Squad, on or about March 4, 2008, in the vicinity of 165th Avenue and Cross Bay Boulevard, Queens County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Detective received Viagra, a prescription medication, from Mr. **Person A** a person said Detective had knowledge was not authorized by law to sell or transfer such prescription medication. *(As amended)*
P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

2. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about and between January 19, 2007 through February 22, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that based on information known to the Department, said Detective engaged in transactions to purchase steroids without a prescription with an individual known to the Department.
P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

3. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about and between the dates indicated in Specification #2, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in, or have engaged in criminal activities.
P.G. 203-10, Page 1, Paragraph 2(C)

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

4. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about June 7, 2007, in the vicinity of 34-48 Steinway Street, Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Detective, while on duty and in a Department vehicle, left the confines of his command to visit a licensed establishment, without police necessity or authority to do so.

P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

5. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, while on duty, on or about and between January 1, 2005 through March 4, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Detective conducted computer inquiries on an individual, identity known to this Department, which were not related to his official duties.

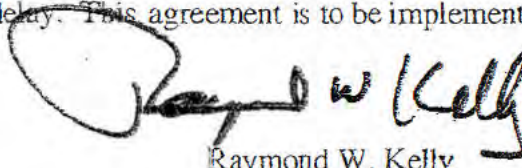
P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

In a Memorandum dated July 27, 2012, Assistant Deputy Commissioner Vinal found Respondent Garcia Guilty in Specification Nos. 1 through 5 in Disciplinary Case No. 84798/08. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

The misconduct committed by Respondent Garcia in the above referenced matter warrants separation from the Department. However, in consideration of his service record, I will allow a manner of separation other than dismissal from the Department. It is therefore directed that a post-trial Vested-Interest retirement agreement be implemented with Respondent Garcia. In consideration of such, Respondent Garcia is to forfeit 30 suspension days (*to be served*) and separate from the Department on a continued suspended duty status. Respondent Garcia will also forfeit all suspension days since served and to be served, including all time served while on suspension with pay. Respondent Garcia will waive all accrued leave and time balances, including terminal leave, if any, and will immediately be placed on a One-Year Dismissal Probation period.

Such Vested Interest retirement shall also include Respondent Garcia's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Respondent Garcia does not agree to the terms of this Vested-Interest retirement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY.**



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

July 27, 2012

-----X
In the Matter of the Charges and Specifications

: Case No. 84798/08

- against -

Detective Thomas Garcia

Tax Registry No. 903998

Military and Extended Leave Desk
-----X

At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department:

Michelle Allenye, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Jeffrey A. Udell, Esq.
65 East 55th Street
New York, New York 10022

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on September 26, 2011 and November 16, 2011,¹ charged with the following:

1. Said Detective Thomas Garcia, while off-duty and assigned to the 24th Precinct Detective Squad, on or about March 4, 2008, in the vicinity of 165th Avenue and Cross Bay Boulevard, Queens County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Detective received Viagra, a prescription medication, from Mr. Person A a person said Detective had knowledge was not authorized by law to sell or transfer such prescription medication. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about and between January 19, 2007 through February 22, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that based on information known to the Department, said detective engaged in transactions to purchase steroids without a prescription with an individual known to the Department.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT –
GENERAL REGULATIONS

3. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about and between the dates indicated in Specification #2, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in, or have engaged in criminal activities.

P.G. 203 10, Page 1, Paragraph 2(C) – PROHIBITED CONDUCT –
GENERAL REGULATIONS

4. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, on or about June 7, 2007, in the vicinity of 34-48 Steinway Street, Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said detective, while on duty and in a Department vehicle, left the confines of his command to visit a licensed establishment, without police necessity or authority to do so.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT
GENERAL REGULATIONS

¹ The trial record was reopened for the submission of memoranda of law regarding the legal status of certain steroids. After receipt of these memoranda, decision in this case was reserved and the trial record was closed as of April, 4, 2012.

5. Said Detective Thomas Garcia, while assigned as indicated in Specification #1, while on duty, on or about and between January 1, 2005 through March 4, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said detective conducted computer inquiries on an individual, identity known to this Department, which were not related to his official duties.

P.G. 203-10, Page 1, Paragraph 5 **PROHIBITED CONDUCT –
GENERAL REGULATIONS**

The Department was represented by Michelle Alleyne, Esq., Department Advocate's Office. Respondent was represented by Jeffrey A. Udell, Esq.

Respondent, through his counsel, entered pleas of Guilty to four of the charged Specifications and he entered a plea of Not Guilty to Specification No. 2. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded guilty, is found Guilty of Specification Nos. 1, 3, 4 and 5. Respondent is found Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Edward Rodriguez as its sole witness.

Lieutenant Edward Rodriguez

Lieutenant Rodriguez, who has been a member of the Department for 19 years, is currently assigned as a team leader in the Internal Affairs Bureau's (IAB) Group 41 investigating allegations of corruption and misconduct.

In July, 2007, Rodriguez was assigned to an investigation which had been initiated by Narcotics Borough Queens (NBQ). The targets of NBQ investigation were Person B Person B and Person C who were selling steroids out of the Powerhouse Gym in Queens. IAB joined the investigation after NBQ ascertained that a member of the service was involved with Person B and Person C in distributing steroids.

The IAB/NBQ joint investigation team (the team) obtained a wiretap order to intercept telephone conversations between Person C Person B and their distributors. One of their distributors was identified as Person A. During an intercepted call that took place on January 12, 2007, Person A requested that Person C supply him with steroids which Person A indicated he intended to provide to "Tommy the DT." Rodriguez testified that the team suspected that the term "DT" indicated that "Tommy" was a detective. [The transcript of this conversation between Person A and Person C was admitted into evidence as Department's Exhibit (DX) 1]

As a result of this conversation, the team obtained a wiretap order to intercept outgoing and incoming calls made to and from Person A telephone. Through this monitoring, it was determined that the phone number of the individual who Person A had referred to as "Tommy" was [REDACTED]. The team then determined that this was Respondent's telephone number.

Rodriguez testified that on May 1, 2007, the team intercepted three separate telephone conversations between Person A and Respondent regarding steroid substances that Respondent was seeking to buy from Person A

On May 1, 2007, at 1716 hours, Respondent told Person A "I want to pick up some stuff tonight." When Person A asked Respondent, "What do you need?" Respondent stated, "Three bottles of the Winnies," and "one bottle of Dec," and "one bottle of Test," and "one Trenbolon," and "one box of GH if you got that." (DX 2) Rodriguez testified that "Winnies" is the slang term for the steroid Winstrol; that "Dec" is the slang term for the steroid Decadurabolin; that "Test" is the slang term for Test 215 and 400 which are blends of steroids; that "Trenbolon" is a steroid; and that "GH" is the abbreviation for Growth Hormone. Two minutes later, at 1718 hours, Person A told Respondent that the purchase price for all of the steroids he had ordered "comes out to \$940." Respondent told Person A "It sounds good." (DX 3)

On May 1, 2007, at 1753 hours, Person A told Respondent that he was going to get Respondent a "box of Jintropin." When Person A asked Respondent if he was sure he was "stopping by" Respondent responded, "Yeah, unless somebody gets their head blown off their shoulders, I'm definitely there." Respondent later told Person A "I'm going to stop tomorrow to pick up the other stuff." (DX 4) Rodriguez testified that Jintropin is a human growth hormone.

During a conversation between Respondent and Person A on May 2, 2007, Respondent stated, "Yeah, yeah, I gave you 360, right, or 350. 350, right, no problem." Person A then stated, "Yeah, 590, yeah, that's the balance or whatever, because you gave me 350, right?" Rodriguez testified that although some of these steroids may be

available for purchase at pharmacies if the buyer has a prescription, he was not certain because he is "not an expert in the field."

Rodriguez conducted a surveillance of Respondent in Queens County on June 7, 2007. Rodriguez observed Respondent enter the Riviera Gentleman's Club while Person A was working there. Since Respondent was assigned to the 24 Precinct in Northern Manhattan, he was not in Queens to perform any official police duties. While inside the Riviera club, Rodriguez observed Respondent speaking with Person A

Rodriguez testified that on May 1, 2007, he observed Respondent arriving at the Riviera at 11:30 p.m. in his private vehicle. Later that night, he observed off duty Police Officer Frank Torelles exit the club, accompanied by Person A at 2:30 a.m. on May 2, 2007). At this time, the two men walked across the street over to Person A black SUV and Person A provided a black bag to Torelles, who then entered Respondent's private vehicle and sat in the front passenger's seat." Rodriguez was in contact with undercover officers inside the club. They informed him that Respondent was still inside the club when Torelles entered his vehicle, but shortly thereafter he exited and went to the vehicle. Respondent and Torelles were in the car together for "a minute or two before they pulled off." Rodriguez could not see what they were doing inside the vehicle. No arrests were made because Rodriguez "did not have a green light to execute an arrest at that moment because [it] would compromise the entire investigation."

When the narcotics investigation ended on September 6, 2007, "10 or 12" associates of Person C were arrested. Person A however, was not arrested. Rodriguez stated that "[h]e was left out for IAB to develop a stronger case."

During a taped conversation between Respondent and Person A on February 25, 2008, Respondent stated, "Yo, you know what Frankie wanted? He wanted a bottle of T, like something that would work good with the GH" (DX 7).

On March 4, 2008, the team was at the Prima Pasta Restaurant on Cross Bay Boulevard because, based on information obtained via the wire tap, the restaurant was expected to be the location of an exchange between Person A and Respondent. Respondent was arrested there in possession of a clear plastic baggie that contained a quantity of Viagra pills. When questioned by Rodriguez, Respondent told him that Person A had provided him with the pills. About three hours after Respondent's arrest, Person A was also arrested. Person A consented to a search of his residence (DX 6 is a voucher listing the items found in Person A home).

Rodriguez testified that Respondent was interrogated after he was arrested on March 4, 2008. Rodriguez asserted that during this interrogation, Respondent stated that he was aware that Person A dealt steroids. He also indicated that he knew Person C. When he was questioned about meeting Person A on May 1 and 2, 2007, Respondent stated that he received pornographic videos at that time rather than steroids.

On cross-examination, Rodriguez was confronted with the report of his interrogation of Respondent on March 4, 2008. Rodriguez conceded that this report does not specifically note that Respondent had stated that he knew Person A was a steroid dealer. Rodriguez contended that this report is merely a summary of what Respondent said at the interview and that this statement was simply left out. Rodriguez admitted that he had obtained and examined Respondent's bank records and had not spotted anything out of the ordinary. He also agreed that Respondent had never failed a Department drug test.

Rodriguez acknowledged that Respondent's hair and urine samples, which were collected on the day of his arrest, both came back negative.

Rodriguez agreed that none of the phone numbers in Respondent's phone records, with the exception of Person A phone number, matched up with any of the other phone numbers contained in the phone records of all known targets and subjects of the narcotics investigation. Rodriguez also agreed that there are substances that are sold legally which purport to have the same effects as some steroids.

Rodriguez confirmed that there was nothing illegal or improper about Respondent's attendance at the casino in Yonkers or about his mere attendance at the Riviera Gentleman's Club. He also admitted that he did not recover any steroids on May 1 and 2, 2007, the dates of the surveillance conducted at the Riviera Gentleman's Club. Rodriguez acknowledged that at his Official Department hearing, Torelleas denied that he had steroids on his person on May 1 or May 2, 2007. Rodriguez admitted that although the substances confiscated from Person A home were labeled as steroids, he did not know the exact chemical composition of the substances.

Rodriguez stated that during a "controlled buy" conducted on March 11, 2008, Person A never personally interacted with Person C. Rather, he left the money at a location and Person C dropped off a package for him at that location. Rodriguez testified that he did not know for certain whether the substances in the package were steroids because he has not seen the test results.

On re direct examination, Rodriguez reiterated that he did not arrest Respondent or search his vehicle on May 1 2007, or on May 2, 2007, because it would have compromised the broader investigation. He stated that he had never seen Jintropin,

Winstrol, Decadurabolin, Dianabol, Trenbolone or any other steroid mentioned by Respondent or Person A during their recorded conversations available for sale over-the-counter manner.

Rodriguez testified that “sometimes Person C customers didn’t really know what they were getting.” He stated, “[a]pparently Person C used to put in like sesame oil” into the mixture with the steroids that he sold. Person C’s apparent rationale was to make “two out of one” to increase his profits. However, Rodriguez did not believe that Person C ever sold “fake steroids.” Rodriguez stated that Person C was a distributor and not engaged in actual selling. Therefore, Person C never sold directly to an undercover officer. During a taped phone conversation between Person A and Respondent on February 6, 2007, Respondent used the word “sustie” which is a street term that typically refers to Sustanon.

Respondent’s Case

Respondent called his spouse Bernadette Lopez-Garcia as a witness and he testified in his own behalf.

Bernadette Lopez-Garcia

Bernadette Lopez-Garcia (Bernadette) testified that she is 29 years old and has been married to Respondent since December of 2005. She and Respondent now have two children, both under two years of age. She is attending LaGuardia Community College to receive her degree in business administration and is not currently working. Her most recent employment was in 2009.

She testified that soon after they married, she and Respondent decided to start a family. In 2006, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. She testified that around this time, she overheard Respondent speaking with his friend "Person A" (Person A) about Viagra. On March 4, 2008, she asked Respondent, via a text message, if Person A could get him a few Viagra pills. Later that day, Respondent was arrested.

On cross-examination, she admitted that she knew that "Person A" was not a doctor but she did not know whether or not "Person A" was a pharmacist. She also admitted that after she found out that Dr. Misrahi was unavailable, she did not attempt to obtain a Viagra prescription from a licensed medical professional. She recalled that Respondent's

[REDACTED] problems had begun about two years before Respondent's arrest and

that these problems had occurred "off and on" since "2006, 2007." She testified that she never noticed Respondent working out excessively. He has always worked out a great deal. She has never noticed a dramatic or pronounced change in his physique over time.

On redirect examination, she testified that she believed that "Person A" possessed "pills for himself and he was just going to give" Respondent "a few" pills. She believed this because she overheard a conversation between Respondent and "Person A" which indicated this. She recalled that even before they were married, Respondent had suffered "a few times, but nothing major" and "not at the same level" as he suffered during 2006 and 2007.

Respondent

Respondent, who is currently assigned to the Military and Extended Leave Desk, testified that after performing patrol duties at the 23 Precinct, he was assigned to the Narcotics Division in 1998. From 1998 until July, 2006, he performed narcotics enforcement duties. In July, 2006, he was transferred to the 24 Precinct Detective Squad.

Respondent testified that he has known "Person A" ever since they attended high school together and that "Person A" worked at the Riviera Gentleman's Club.

With regard to Specification No. 1, Respondent testified that in a manner consistent with the testimony of his wife regarding his

Respondent testified that because "Person A" had told him that he was also having problems, he assumed that "Person A" had a prescription for Viagra. On March 4, 2008, after his wife sent him a text message which stressed the need for him to

get Viagra pills immediately, he purchased 15 Viagra pills from Person A for \$180.00. Later that day, Respondent was arrested in possession of these Viagra pills. [The parties stipulated that Respondent's arrest resulted in a criminal trial in Queens at which he was acquitted of the charge of illegal possession of Viagra based on a finding that he had established an affirmative defense that his receipt of the Viagra was in good faith for a legitimate medical purpose.] Respondent testified that he should have obtained the Viagra pills from Dr. Misrahi but he was unavailable that day.

With regard to Specification No. 2, Respondent testified that during the period when he was assigned as an undercover officer who made narcotics purchases on the street, he was constantly dieting to keep his weight down because he was attempting to appear as if he were "a crack addict." When his supervisors "flipped" his assignment from being an undercover officer to being an investigator, he decided that he needed to "bulk up" because he believed that if he got "bigger" he could avoid street "altercations" when he arrested sellers.

Because Person A is "a big gym rat" who is "always working out," Respondent asked Person A "what supplements I could take that would help me gain the size I needed." Person A showed him ads in muscle magazines for "legal steroids" that Person A said "mimic the effects of steroids but they were legal." Person A told him that these substances were "not at all illegal" and that "no prescription" [was] "needed" to obtain them. Respondent asserted that he was not aware that any of the substances that Person A had sold him were actually steroids because Person A had told him that all of the substances he was selling him were not steroids but, rather, "steroid-like" substances. He bought them from Person A because Person A told him that he could get them at a discount. Person A showed him

advertisements contained in magazines such as "Flex," "Muscular Development," and "Muscle Mag," (RX D 1, 2 and 3) which offered for sale by mail the same substances that Respondent was purchasing from Person A

With regard to Specification No. 3, Respondent testified that he knew that Person A was a person reasonably who was likely to have engaged in criminal activity since he was aware that Person A had been arrested for Criminal Possession of a Controlled Substance in 2005. Although Person A criminal case was Adjourned in Contemplation of Dismissal (ACD), Respondent acknowledged that he should have avoided contact with Person A after Person A had been arrested.

With regard to Specification No. 4, Respondent testified that on June 7, 2007, Detective Jackson told him that he wanted to go to the Riviera Gentleman's Club and that he wanted the cover charge waived. Respondent admitted that even though he was on duty, assigned to the 24 Precinct Detective Squad, he drove from Manhattan in a Department vehicle to the Riviera Gentleman's Club at 34-48 Steinway Street, Queens. He entered the Club with Jackson and he asked Person A to let Jackson into the Club "gratis." Respondent recalled that he remained there one hour.

With regard to Specification No. 5, Respondent testified that in 2005, Person A asked him if he could find out about Person A arrest. Respondent admitted that he used a Department computer to conduct a BADDs check on Person A. Respondent testified that in 2006, Person A asked him if he could find out if Person A "ACD had cleared." Person A told him that he had applied to be a Corrections Officer and he was concerned that if his arrest was still on his record the Corrections Department would deny his application. Respondent used a Department computer to conduct a second BADDs check regarding

Person A arrest. He informed **Person A** that the BADDS check showed that the ACD “was still open” even though one year had passed since his arrest. He advised **Person A** that he should go to Criminal Court “to get the ACD closed.”

Respondent described his misconduct as delineated in Specification No. 4, and his misconduct of conducting two computer inquiries which were not related to his official duties, as delineated in Specification No. 5, as “inexcusable” and wrong.

On cross examination, Respondent testified that **Person A** told him that the controlled substance he had been arrested for possessing during 2005 was not a steroid. Respondent admitted that he knew that **Person A** was not permitted to sell Viagra to him. Respondent also admitted that he “never got into detail” with **Person A** regarding the specifics of how and where **Person A** was obtaining the “steroid-like” substances that he was selling to him and that he “never asked” **Person A** any questions about his source. Respondent admitted that he believed that **Person A** was selling the substances to him at a discount. Respondent asserted that **Person A** told him that he was obtaining the substances that he sold to him from someone at “GNC.”

FINDINGS AND ANALYSIS

Specification Nos. 1, 3, 4 and 5

Respondent, having pleaded guilty as charged, is found Guilty of Specification Nos. 1, 3, 4 and 5.

Specification No. 2

It is charged that between January 19, 2007 and February 22, 2008, the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by engaging in transactions to purchase steroids without a prescription from Person A

Respondent does not dispute that over an extended period he purchased a variety of substances from Person A who he knew was not a medical professional and had no license to distribute any substances which could only be lawfully obtained at a pharmacy via a prescription. Respondent also does not dispute the Department's position that DecaDurabolin, Winstrol, Trenbolone, Sustanon, Testosterone 250 and Testosterone 400 are anabolic steroids classified as Schedule III controlled substances under the federal Controlled Substances Act and Schedules II controlled substances under New York State Public Health law and, thus, can only be lawfully obtained at a licensed pharmacy via a prescription issued by a physician.

I find Respondent Guilty based on his own testimony and based on the statements he made to Person A during their tape recorded phone conversations which are evidenced by the tape transcripts (DX 1- 5, 7 and 8). During these recorded conversations, Respondent is heard placing orders with Person A to obtain bottles of "Jins," "Winnies," "Dec," "Test," "Trenbolon," and a box of "GH." (DX 2) I credit Lieutenant Rodriguez' testimony that "Jins" refers to the Jintropin; that "Winnies" is the slang abbreviation for Winstrol; that "Dec" is the slang term for Decadurabolin; that "Test" is the slang term for the substances Test 215 and 400; and that "GH" is an abbreviation for Human Growth Hormone. Respondent offered no expert testimony to refute Rodriguez' testimony that

all of these substances are steroids and that none of these substances can be purchased without a prescription at any pharmacy located within the State of New York.

Moreover, the manner in which Respondent is heard placing his orders with Person A to purchase these steroids betrays that he had been a regular user of a wide variety of steroids for an extended period of time, that he was familiar with how these substances affected his body, and that he was pleased that these substances were helping him to achieve his body building goal of "bulking up."

Respondent asserted at this trial that he was not aware that these substances were actually steroids. Respondent claimed that Person A had told him that all of the substances he was selling him were not steroids but, rather, "steroid-like" substances.

As a uniformed member of the Department, Respondent was under a duty to ascertain whether any substance he received from another person constituted a controlled substance. Respondent was also under a duty to insure that any substance he received from another person was obtained lawfully through a legitimate, authorized provider.

Since Respondent had performed narcotics enforcement duties, he was fully aware that illegal black markets exist regarding a wide variety of controlled substances that can only be lawfully purchased via a medical prescription presented at a licensed pharmacy. Despite this awareness, Respondent admitted in his testimony at this trial that he made the purchases from Person A which they discuss in their tape recorded telephone conversations even though he knew that Person A had no medical or pharmaceutical license and was not authorized to dispense any controlled substance, and even though he knew that Person A had been arrested for Criminal Possession of a Controlled Substance in 2005.

Respondent further admitted in his testimony at this trial that even though Person A was able to sell him these substances "at a discount," he "never got into detail" with Person A as to how he was obtaining these substances, and he never asked Person A about his source. Rather, Respondent asserted at this trial that he blandly accepted Person A vague, unsupported claim that he supposedly obtained all of the substances that he sold to Respondent at a discount legally from an unnamed source at "GNC." These admissions by Respondent lead to the conclusion that Respondent did not want to know where and how Person A was obtaining these substances.

Moreover, Respondent's testimony that he truly believed that Person A had obtained the substances that he sold to Respondent from a legitimate source at "GNC" is inconsistent with the content of the telephone conversations between Respondent and Person A. For example, during the tape recorded conversation between Respondent and Person A on May 1, 2007, at 1716 hours, Respondent told Person A "I want to pick up some stuff tonight," and during the tape recorded conversation between Respondent and Person A on February 25, 2008 (DX 7), Respondent and Person A both refer to substances Respondent is seeking to obtain from Person A as "stuff," and when Respondent asks Person A if he has access to "ACG," Person A tells him "that stuff is a lot harder to get" than "the usual stuff." The consistent use of word "stuff" by both parties to describe what Respondent was seeking to purchase leads to the conclusion that he and Person A were using "stuff" as a code word to avoid using the word "steroids" over the telephone.

Respondent's claim that he truly believed that Person A had obtained the substances that he sold to Respondent from a legitimate source at "GNC" is also belied by the manner in which Respondent made his purchases and where he made these purchases.

As reflected in their tape recorded conversations, Respondent agreed to make his purchases from Person A by meeting him at the Riviera Gentleman's Club (the Club) where Person A worked. That Respondent should have been aware that Person A was engaged in illegal activity at the Club is reflected by Person A concern about possible police surveillance at the club as expressed by Person A during the tape recorded conversation between Respondent and Person A on May 2, 2007 at 1738 hours (DX 5). Respondent's knowledge of Person C is also established by this conversation. When Person A states that "Person A" told him something, Respondent merely says, "Yeah." The fact that Respondent does not ask Person A who "Person A" is indicates that Respondent understands that Person A is referring to Person C.

Also, although it is not disputed that Respondent and his wife had a "family doctor," Dr. Misrahi; that Respondent consulted him regarding his Person A problem; and that he obtained a sample pack of the prescription drug Person A from him (RX A); Respondent offered no testimony that he consulted Dr. Misrahi, or any medical or legal professional, to ascertain whether the substances that he was purchasing from Person A could be lawfully obtained without a prescription.

Respondent asserts that he is not guilty of this charge because he had no intent to purchase anabolic steroids. Rather, Respondent asserts that he only intended to purchase substances which he contended are marketed legally and which he contended produce effects in the human body which are similar to the effects produced by anabolic steroids. The only evidence offered by Respondent to support his claim that he had a good faith reason to believe that it was lawful for him to buy the numerous substances that

Respondent purchased from Person A are advertisements contained in muscle magazines (RX D 1, 2 and 3).

Although these magazine ads submitted by Respondent promote the sale of Deca diboldazol,² Deca-bol,³ Winnabol,⁴ Tren-dimethyl,⁵ Trenbolin,⁶ and Sustanon,⁷ Respondent's offered no support for his contention that Person A showed him these magazines and "explained how these things mimic the effects of steroids, but they were legal," and Respondent offered no support for his contention that the substances listed in these ads can be purchased legally within the State of New York without prescription.

Respondent cited a federal criminal case⁸ where the Circuit Court of Appeals reversed the conviction of a defendant for importing and possessing anabolic steroids with intent to distribute where the defendant had imported and possessed estrogen derivatives of the anabolic steroids testosterone and boldenone and the prosecutor had offered inadequate evidence that these estrogen derivatives promoted muscle growth and did not establish that the substances met the statutory definition of anabolic steroid.

However, here Respondent's own statements in his conversations with Person A establish that the substances he purchased from Person A promoted muscle growth. For example, Respondent referred to "GH" (DX 7) which Lieutenant Rodriguez' testified is the abbreviation for Human Growth Hormone, and Respondent told Person A that "Sustanonize works, works fantastic." (DX 8) Moreover, here Respondent is not charged with importing and possessing anabolic steroids with intent to distribute and this

² RX 3.

³ RX 1.

⁴ RX 3.

⁵ RX 3.

⁶ RX 1.

⁷ RX 2.

⁸ *United States v. Orduno-Aguilera*, 183 F.3d 1138 (9th Cir. 1999).

is not a criminal trial where the standard of proof is not beyond a reasonable doubt. Here, Respondent is charged with engaging in conduct prejudicial to the good order, efficiency or discipline of the Department by purchasing substances from Person A that Respondent could not lawfully purchase in New York except at a licensed pharmacy with a prescription.

Respondent's claim that he would not be disciplined if he had purchased the substances that are offered for sale in the advertisements contained in the muscle magazines in evidence is not supported by Disciplinary Case No. 83159/07, signed on December 16, 2009, where a police officer was charged with possessing and ingesting nandrolone. In that case, as here, the officer testified that he was suffering from a physical ailment and that he sought relief by ingesting nandrolone which he had not obtained via a prescription issued by a physician. In that case the officer obtained the nandrolone he ingested by purchasing it from a web site on the Internet.

Also, since Respondent had performed enforcement duties regarding controlled substances, he was fully aware that even if a particular substance can be lawfully purchased without a prescription in another state, the laws of the State of New York govern what substances can only be lawfully purchased within New York at a licensed pharmacy via a prescription issued by a licensed medical professional. Thus, I reject Respondent's argument that he had a right to rely on the representations made in these magazine ads regarding his purchase of steroids from Person A

Finally, although Respondent asserted that the negative result on his drug test shows that he was not consuming steroids, Respondent offered no expert testimony to establish that he could not have used steroids during the charged period of time.

The Department has met its burden and has proved by a preponderance of the credible evidence that Respondent engaged in transactions to purchase steroids without a prescription. As a result, Respondent is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on August 30, 1993. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

With regard to Specification No. 1, although Respondent was acquitted at a criminal trial of illegally possessing the Viagra that Person A supplied to him, here he has pleaded guilty and admitted that he engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by receiving Viagra, a prescription medication, from Person A who Respondent knew was not authorized to sell or transfer this prescription medication. Respondent attempted to mitigate his misconduct by testifying that he had obtained the Viagra pills from Person A only because his wife Bernadette had implored him to obtain Viagra immediately and because their family physician was not available. Although his wife supported this claim, this testimony does not serve to mitigate his misconduct of obtaining Viagra from a non-licensed source because Respondent did not even attempt to obtain a prescription for Viagra through another physician or a medical clinic.

With regard to Specification No. 3, Respondent admitted that he had knowingly associated with Person A who was a person he reasonably believed to be engaged in, likely to engage in, or have engaged in criminal activities since he was aware that Person A had been arrested in 2005 for possession of a controlled substance and he knew that he should have avoided contact with Person A after he was arrested. Respondent's misconduct of knowingly associating with Person A is aggravated by the nature of their association. As discussed under Specification No. 2 below, Respondent engaged in a vendor/purchaser relationship with Person A by purchasing substances from Person A that Person A was not licensed to sell.

With regard to Specification No. 4, Respondent admitted that while he was on duty, he left the confines of his command, which was located in Manhattan, and drove in a Department vehicle to the Riviera Gentleman's Club in Queens solely for the purpose of seeing Person A. Respondent's claim that he went there so that Detective Jackson would be admitted to the Club for free does not in any way mitigate Respondent's misconduct.

With regard to Specification No. 5, Respondent admitted that his misconduct of conducting two computer inquiries which were not related to his official duties was "inexcusable" because he had performed these inquiries for Person A at his request. Although Respondent asserted that he received no benefit from performing these computer inquiries for his friend, since Person A was selling substances to Respondent, Respondent's action of conducting computer inquiries on Person A behalf and providing the information he obtained to Person A created the impression that he was assisting Person A in order to obtain a personal benefit.

Finally, with regard to Specification No. 2, Respondent has been found guilty of illegally purchasing steroids from Person A. Penalties just short of immediate dismissal from the Department have been imposed in certain cases where members have illegally purchased steroids and human growth hormones outside the normal course of standard medical care. For example, in Disciplinary Case No. 83969/08 (signed on February 18, 2011), a Deputy Chief forfeited 30 vacation days and was placed on dismissal probation after he was found guilty at trial of engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department by possessing and using anabolic steroids and human growth hormones for purposes outside the normal course of standard medical care. However, in that case, unlike here, the Deputy Chief obtained these controlled substances from a licensed pharmacy via a prescription he had received from his physician (although the physician apparently violated the law by prescribing human growth hormone to the Deputy Chief for purposes outside the normal course of standard medical care).

Here, the numerous steroids Respondent purchased and used were not obtained via a prescription nor were they purchased from a licensed provider. Based on Respondent's admissions that he did not know exactly where Person A was obtaining the substances that he was purchasing from Person A that he did not even attempt to confirm Person A alleged claim that the substances were from a source at "GNC;" and that he did not even attempt to confirm Person A alleged claim that the substances were not steroids but rather "steroid-like" substances by consulting with a medical professional; I can only conclude that Respondent either knew that the substances he was illegally purchasing were steroids or he did not care whether the substances he was illegally purchasing were

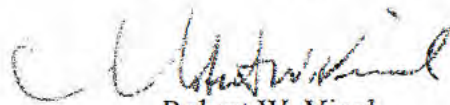
steroids or other controlled substances since these substances were helping him achieve his body-building goal of "bulking up."

Also, here, Respondent purchased a wide variety of steroids from a person he reasonably believed to be engaged in, likely to engage in, or have engaged in criminal activities since he was aware that Person A had been arrested in 2005 for possession of a controlled substance and he knew that he should have avoided contact with Person A after he was arrested. Respondent's misconduct of knowingly associating with Person A is aggravated by the nature of their association. Respondent engaged in a commercial business relationship with Person A by purchasing substances from Person A that Person A was not licensed to sell.

The Assistant Department Advocate recommended that Respondent be separated from the Department.

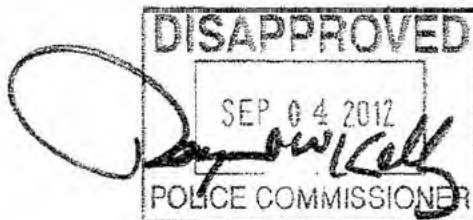
Having examined the facts and circumstances surrounding the Respondent's misconduct, I concur and recommend that Respondent be DISMISSED from the Department.

Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

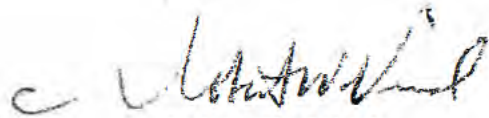


POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE THOMAS GARCIA
TAX REGISTRY NO. 903998
DISCIPLINARY CASE NO. 84798/08

The Respondent received an overall rating of 4.0 on his 2008 performance evaluation, 4.0 on his 2007 evaluation, and 3.5 on his 2006 evaluation. He has no medals. [REDACTED]. He has no prior formal disciplinary record and no monitoring records.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials